



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Email Address: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

1st Endorsement
February 29, 2024

SBDC - 03042024 - 665

OFFICE OF THE SANGGUNIANG BAYAN
PRIETO DIAZ, SORSOGON 4711

RELEASED

DATE: 03/04/24 TIME: 12:46 PM
BY: [Signature] REF. NO. 065

Respectfully transmitted to **Hon. ROMEO DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 037-2024 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE UNIVERSITY OF THE PHILIPPINES (UP) DILIMAN, QUEZON CITY, REPRESENTED BY ITS CHANCELLOR, EDGARDO CARLO VISTAN, FOR THE CRAFTING OF TOURISM FRAMEWORK DEVELOPMENT PLAN OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.

[Signature]
BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:
- Mr. Oriculo Despuig
Municipal Tourism Officer-designate

OFFICE OF THE MAYOR
LGU PRIETO DIAZ, SORSOGON

RECEIVED

By: [Signature]
Date: MAR 04 2024
1:21 PM

rec'd: [Signature]
3/04/24
Tourism



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON FEBRUARY 19, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Joseph H. Yap, Jr.	S. B. Member, Presiding Officer Pro tempore
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/on leave
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RESOLUTION NO. 037-2024

Introduced by Hon. Jo Madel D. Domalaon

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE UNIVERSITY OF THE PHILIPPINES (UP) DILIMAN, QUEZON CITY, REPRESENTED BY ITS CHANCELLOR, EDGARDO CARLO VISTAN, FOR THE CRAFTING OF TOURISM FRAMEWORK DEVELOPMENT PLAN OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, UP Diliman, through the Asian Institute of Tourism (AIT), offers the Undergraduate Degree Program in Tourism and Graduate Degree Programs in Tourism Development and Management, which recognizes Out-of-Classroom Learning Activities (OCLA) in tourism destinations as an essential learning component of the said programs;

WHEREAS, UP Diliman, through the AIT, has the recognized capability, experience, and expertise to conduct research, mentor undergraduate and graduate students in Tourism, and provide assistance to LGUs in crafting a Tourism Development Framework Plan (TDFP), through the OCLAs and similar academic activities as well as extension work;

WHEREAS, LGU Prieto Diaz expressed its desire to partner with the UP Diliman through AIT, in the conduct of OCLAs and extension work for the purpose of crafting a TDFP for LGU Prieto Diaz;

WHEREAS, UP Diliman, through AIT, hereby agrees to design, facilitate, and supervise the conduct of OCLA and extension work in LGU Prieto Diaz;

WHEREAS, UP Diliman, shall among others, organize OCLAs and related tourism development workshops, seminars, and consultation meetings to be participated in by students, faculty and staff of AIT; engage identified sectors and agencies of LGU Prieto Diaz during the OCLA and extension work; appoint/select required resource speakers from UP faculty/alumni/staff and facilitate the conduct of the OCLA and extension work; ensure that administrative and logistical requirements of the OCLA and extension work are met, including:

1. Selection of research themes and sites;
2. Provision of staff to assist students, faculty and staff;
3. Designing feedback and data gathering instruments to be used; and

WHEREAS, LGU Prieto Diaz shall, among others, designate an official liaison person or team to collaborate with AIT prior to and during the OCLA and extension work; assist in the organization of workshops, seminars, and consultation meetings pertinent to the OCLA and extension work; provide logistical support in the conduct of the workshops, seminars, and consultation meetings;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Albert Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with the University of the Philippines (UP) Diliman, Quezon City, represented by its Chancellor, Edgardo Carlo Vistan, for the crafting of Tourism Framework Development Plan of the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Mr. Oriculo Despuig, Municipal Tourism Officer-designate; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.

ATTESTED:


Hon. JOSEPH H. YAP, JR.
S. B. Member, Presiding Officer Pro-tempore


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

MEMORANDUM OF AGREEMENT

KNOW ALL PERSONS BY THESE PRESENTS:

This Memorandum of Agreement made and entered into this ____ day of _____ 2023 at _____ Philippines by and between:

The **MUNICIPAL GOVERNMENT OF _____**, a local government unit existing under Philippine Law, with office address at the _____, represented herein by its Mayor, _____, hereinafter referred to as "**LGU _____**";

- and -

UNIVERSITY OF THE PHILIPPINES, the National University, created by virtue of Act No. 1870, as amended and strengthened by Republic Act No. 9500, otherwise known as "The University of the Philippines Charter of 2008" through its constituent university at Diliman, with official address at Quezon Hall, U.P. Campus, Diliman, Quezon Province, 1101, Philippines, represented herein by its Chancellor, **EDGARDO CARLO VISTAN**, hereinafter referred to as the "**UNIVERSITY**;"

WITNESSETH: That

WHEREAS, **LGU _____** is aware of the importance of the sustainable development of the tourism industry in the Province and the country;

WHEREAS, there is a need to assess the tourism situation and inform the tourism development of **LGU _____**;

WHEREAS, the **UNIVERSITY**, through the Asian Institute of Tourism (AIT), offers the Undergraduate Degree Program in Tourism and Graduate Degree Programs in Tourism Development and Management, which recognizes Out-of-Classroom Learning Activities (OCLA) in tourism destinations as an essential learning component of the said programs; ✓

WHEREAS, the **UNIVERSITY**, through the AIT, has the recognized capability, experience, and expertise to conduct research, mentor undergraduate and graduate students in Tourism, and provide assistance to LGUs in crafting a Tourism Development Framework Plan (TDFP), through the OCLAs and similar academic activities as well as extension work; ✓

WHEREAS, **LGU _____** expressed its desire to partner with the **UNIVERSITY** through AIT, in the conduct of OCLAs and extension work for the purpose of crafting a TDFP for **LGU _____**;

WHEREAS, the **UNIVERSITY**, through AIT, hereby agrees to design, facilitate, and supervise the conduct of OCLA and extension work in **LGU _____**; ✓

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereunto agree, as follows:

1. The **UNIVERSITY**, through AIT, **shall**:

- 1.1 Organize OCLAs and related tourism development workshops, seminars, and consultation meetings to be participated in by students, faculty and staff of AIT, subject to strict compliance with health protocols imposed during the term of this Agreement; ✓
- 1.2 Engage identified sectors and agencies of LGU ____ during the OCLA and extension work; ✓
- 1.3 Appoint/select required resource speakers from UP faculty/alumni/staff and facilitate the conduct of the OCLA and extension work; ✓
- 1.4 Ensure that administrative and logistical requirements of the OCLA and extension work are met, including; ✓
 - 1.4.1 Selection of research themes and sites;
 - 1.4.2 Provision of staff to assist students, faculty and staff;
 - 1.4.3 Designing feedback and data gathering instruments to be used; and
 - 1.4.4 Maintaining close coordination with the AIT team and LGU ____ to ensure optimum achievement of the learning objective/s.
- 1.5 Report outcomes of the OCLA and extension work to LGU ____; ✓

2. LGU ____ shall:

- 2.1 Designate an official liaison person or team to collaborate with AIT prior to and during the OCLA and extension work; ✓
- 2.2 Assist in the organization of workshops, seminars, and consultation meetings pertinent to the OCLA and extension work; ✓
- 2.3 Provide working papers; ✓
- 2.4 Provide logistical support in the conduct of the workshops, seminars, and consultation meetings;
- 2.5 Ensure the dissemination of all the necessary communications and coordinate schedules and facilitate the reporting of the outcome; and
- 2.6 Coordinate with appropriate authorities to ensure the safe conduct of OCLA and extension work in the sites. ✓

3. All parties shall promptly disclose to each other the occurrence of any circumstances that may delay or prevent the timely completion of the terms and conditions herein stipulated, specifying in writing the amount of time involved, the cause of delay, and its subsequent implications on the entire timetable, work schedule and budget.

4. **Intellectual Property Rights**

Ownership and utilization of Intellectual Property and Intellectual Property Rights of the TDFP resulting from the OCLA and extension work shall be assigned to both the **UNIVERSITY** and LGU ____ . The **UNIVERSITY** may use the TDFP for classroom instruction while LGU ____ may use the TDFP as part of its policies and legislation.

In cases not covered by the above provision, Intellectual Property and Intellectual Property Rights shall be governed by Republic Act No. 8293 (Intellectual Property Code of the Philippines), Republic Act No. 10055 (Philippine Technology Transfer Act of 2009) and the UP Intellectual Property Rights Policy of 2011.

5. **Personal Data Protection**

Each Party shall abide by the provisions of Republic Act No. 10173 (Data Privacy Act of 2012) and all other applicable laws and regulations in processing personal and sensitive personal information and in performing and carrying out its obligations under this Agreement.

All personal information or sensitive personal information as defined under the Data Privacy Act of 2012 shall be used solely and exclusively for the purpose of implementing this Agreement.

6. Dispute Resolution

In case of conflict or dispute between the Parties arising from this Agreement, both Parties agree to freely and voluntarily submit themselves to necessary consultation and negotiation for purposes of amicable settlement and find a mutually acceptable solution to their conflict/dispute.

Should the Parties fail to reach an amicable settlement of their conflict/dispute, the same shall be submitted to arbitration, in accordance with PD 242 in relation to Book IV, Chapter 14 of the Administrative Code of 1987. However, should the dispute between the Parties reach the courts of law, the parties agree that the competent courts of ____ or Quezon City shall be the exclusive venue, to the exclusion of all other courts or tribunals.

7. This **MEMORANDUM OF AGREEMENT** shall take effect on _____, upon signing hereof, and shall subsist for a period of three (3) years.

IN WITNESS WHEREOF, the parties hereto hereby set their hands on the date and place first above written.

UNIVERSITY OF THE PHILIPPINES

By:

EDGARDO CARLO VISTAN
Chancellor

LOCAL GOVERNMENT UNIT OF

By:

HON. ____
Mayor

SIGNED IN THE PRESENCE OF:

Witness

Witness

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES)
PROVINCE OF QUEZON) s.s.

BEFORE ME, a Notary Public for and Quezon Province, Metro Manila, Philippines, this day ____ day of ____ 2022, personally appeared the following:

Name: **Passport /I.D./License No.:** **Date/Place Issued:**

DR. FIDEL R. NEMENZO, DSc _____

known to me and to me known to be the same persons who executed the foregoing MEMORANDUM OF AGREEMENT and acknowledged to me that the same is their free voluntary act and deed and that of the entities herein represented.

This instrument, consisting of four (4) pages, including this page whereon this Acknowledgement is written, refers to a Memorandum of Agreement, signed by the parties and their respective witnesses on each and every page hereof.

WITNESS MY HAND AND SEAL on this ____ day of ____ at _____, Philippines

NOTARY PUBLIC

Doc. No. ____;
Page No. ____;
Book No. ____;
Series of 2022.